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Summary of Proposed Initiative Ordinance

Shall the Town of Paonia adopt an ordinance prohibiting government surveillance cameras on public property? The measure would: (1) prohibit the Town from installing, operating, or maintaining surveillance cameras on public property; (2) prohibit the Town from contracting with third parties to install surveillance cameras on public property; (3) declare any existing non-exempt surveillance camera on public property in violation of this ordinance; (4) exempt body-worn cameras on law enforcement officers, warrant-authorized cameras for specific criminal investigations, cameras used solely for live-streaming open public meetings, and cameras monitoring unmanned critical infrastructure facilities not accessible to the general public; (5) declare void any contract or expenditure violating the ordinance; (6) allow citizens to seek injunctive relief with attorney fees; (7) require voter approval to amend or repeal the ordinance.

The two persons who represent the proponents of this referendum petition in all matters affecting the petition and to whom all notices or information concerning the petition shall be mailed are:

Peter McCarthy, 119 ½ Dorris Ave, Paonia, Colorado 81428

Melayna Rosa, 119 ½ Dorris Ave, Paonia, Colorado 81428

Text Of Proposed Initiative

ORDINANCE NO. 2026-__

AN INITIATED ORDINANCE OF THE PEOPLE OF THE TOWN OF PAONIA, COLORADO, PROHIBITING GOVERNMENT SURVEILLANCE CAMERAS ON PUBLIC PROPERTY AND PROVIDING FOR ENFORCEMENT

RECITALS

WHEREAS, the Town of Paonia is a statutory municipality organized under C.R.S. § 31-1-203; and

WHEREAS, C.R.S. §§ 31-15-101 and 31-15-401 grant statutory municipalities police-power authority to protect the health, safety, and welfare of its citizens; and

WHEREAS, residents of Paonia have a fundamental right to move freely through their own town without being surveilled, recorded, tracked, or identified by their government; and

WHEREAS, the right of the People to determine the scope of government surveillance in their community is a fundamental policy choice reserved to the electorate; and

WHEREAS, government surveillance of public spaces intrudes upon the privacy of every resident who walks to the post office, visits a neighbor, attends a church, or simply goes about daily life, and such pervasive monitoring is incompatible with the character of a small, self-governing community; and

WHEREAS, persistent video monitoring of public spaces also creates a chilling effect on the exercise of First Amendment rights, including speech, assembly, and the right to petition the government; and

WHEREAS, in a community of approximately 1,500 residents, government surveillance cameras enable identification and monitoring of substantially all residents, eliminating the practical anonymity that has historically characterized life in a small town;

NOW, THEREFORE, BE IT ORDAINED BY THE PEOPLE OF THE TOWN OF PAONIA, COLORADO:

Section 1. Title.

This initiated ordinance shall be known and cited as the "Surveillance Camera Prohibition."

Section 2. Definitions.

For purposes of this ordinance:

(a) "Surveillance camera" means any device capable of capturing, recording, storing, or transmitting visual images of persons or activities in public spaces, whether operated in real time or by recording, and whether analog or digital.

(b) "Public property" means any real property owned, leased, or controlled by the Town, including streets, sidewalks, parks, buildings, facilities, and rights-of-way.

(c) "Town" means the Town of Paonia and all its departments, agencies, officials, employees, and contractors acting on behalf of the Town.

Section 3. Prohibition.

(a) No installation. The Town shall not install, operate, or maintain surveillance cameras on public property.

(b) No third-party circumvention. The Town shall not contract with or authorize any third party to install, operate, or maintain surveillance cameras on public property on the Town's behalf.

(c) Existing cameras. Any surveillance camera installed on public property as of the effective date of this ordinance that does not fall within the exceptions in Section 4 is in violation of this ordinance.

Section 4. Exceptions.

The following are not prohibited by this ordinance:

(a) Body-worn cameras on law enforcement officers, governed by separate policy.

(b) Warrant-authorized cameras used temporarily for a specific criminal investigation pursuant to a court order, which shall be removed upon expiration of the order.

(c) Public meeting cameras used solely for live-streaming or recording open public meetings to promote transparency, provided such cameras are not used for any other purpose.

(d) Cameras monitoring unmanned critical infrastructure facilities that are not accessible to the general public, provided such cameras are directed solely at the facility and do not capture images of public streets, sidewalks, or other areas accessible to the general public.

Section 5. Contracts Void.

Any contract, agreement, or expenditure of public funds that violates this ordinance is void and unenforceable.

Section 6. Enforcement.

(a) Any registered elector of the Town may seek injunctive relief in Delta County District Court to enforce this ordinance.

(b) A prevailing plaintiff shall be entitled to reasonable attorney fees and costs.

Section 7. Amendment and Repeal.

This ordinance may only be amended or repealed by vote of the registered electors of the Town.

Section 8. Severability.

If any provision of this ordinance is held invalid by a court of competent jurisdiction, the remaining provisions shall continue in full force and effect.

Section 9. Effective Date.

This ordinance takes effect thirty (30) days after certification of election results.

ADOPTED BY THE PEOPLE OF THE TOWN OF PAONIA, COLORADO

Date: _____

Attest: _____

Town Clerk

CERTIFICATION

I hereby certify that the foregoing ordinance was adopted by the qualified electors of the Town of Paonia, Colorado, at the election held on _____.

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AFFIDAVIT OF CIRCULATOR

I, the undersigned, state and affirm:

1. That I have read and understand the laws governing the circulation of petitions;
2. That I was eighteen years of age or older at the time the section of the petition was circulated and signed by the listed electors;
3. That I circulated the foregoing petition section;
4. That each signature on the foregoing petition section was affixed in my presence;
5. That each signature affixed to the foregoing petition section is the signature of the person whose name it purports to be;
6. That, to the best of my knowledge and belief, each of the persons signing the foregoing petition section was, at the time of signing, a registered elector of the Town of Paonia; and
7. That I have not paid or will not in the future pay and that I believe no other person has paid or will pay, directly or indirectly, any money or other thing of value to any signer for the purpose of inducing or causing such signer to affix his or her signature to the petition.

Date this ____ day of _____, 2026.

Signature of Petition Circulator:_____

Printed Name: _____

Residence Address: _____

Municipality: _____

County: _____

State: _____

Acknowledged before me this ___ day of _____, 2026.

Witness my hand and official seal

_____

Notary Public

My commission expires_____.